

In Re vs Amrit Pal Singh Bedi on 16 December, 2020

IN THE COURT OF MR. DHARMESH SHARMA
PRINCIPAL DISTRICT & SESSIONS JUDGE : WEST DISTRICT
TIS HAZARI COURTS : DELHI

Criminal Revision No. 96/2020
CNR No. DLWT01-001905-2020

In re:

Summy Bhasin

W/o Guneet Bhasin

R/o J-11/75, Rajouri Garden,

New Delhi-110027

..... Petitioner/revisionist

Versus

Amrit Pal Singh Bedi

S/o Sh. K.S. Bedi,

R/o J-3/3, Rajouri Garden,

New Delhi-110027

..... Respondent

AND

Criminal Revision No. 97/2020
CNR No. DLWT01-001904-2020

In re:

Sumit Bhasin

S/o Ajit Singh Bhasin

R/o J-11/75, Rajouri Garden,

New Delhi-110027

..... Petitioner/revisionist

Versus

Amrit Pal Singh Bedi

S/o Sh. K.S. Bedi,

R/o J-3/3, Rajouri Garden,

New Delhi-110027

..... Respondent

Crl. Revision Nos. 96/20 & 97/20

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Date of Institution : 11.03.2020

Date of hearing arguments : 07.11.2020 & 15.12.2020

Date of Order : 16.12.2020

Appearances:

Sh. Mandeep Singh Vinaik, Sh. Deepak Bashta and Ms. Ragini Vinaik,
Advocates, for the petitioner/revisionist.

Sh. Sonal Anand and Mr. Aayush Sai, Advocates for the respondent/
complainant.

ORDER

1. This common order shall decide the above noted two Criminal Revision Petitions filed under Section 397 read with Section 339 of the Code of Criminal Procedure, 1973, whereby the petitioners/revisionists have assailed a common order dated 04.10.2019, whereby they have been summoned to face trial on cognizance taken by the Court of Ms. Neha Pandey, Ld. MM (NI Act-03) (West), THC, Delhi under Section 138 of the Negotiable Instruments Act, 1881 (hereinafter referred to as the 'NI Act'). Both the Criminal Revision Petitions raise common question of law and facts and can be conveniently disposed off together.

FACTUAL BACKGROUND

2. Briefly stated, the case of the complainant, who is respondent in the present revision petition, in his complaint under Section 138 of NI Act is that accused No.1 is a Private Limited Company engaged in the business of trenching/fibre optic laying and allied services and the accused Nos. 2 Guneet Bhasin and accused no. 3 Sumit Bhasin are the Directors of accused No.1 company, whereas accused No.4 Ms Summy Bhasin has been handling the finance and accounts of the accused No.1 company and responsible for its day to day operations along-with other accused persons. The case of the complainant was that sometimes in January-2009 accused No.2 Guneet Bhasin, accused No.3 Sumit Bhasin and accused No.4 Smt. Summy Bhasin approached him and allured him into investing Rs. 50 lacs in their company with the assurance that same would be doubled in five years and relying on such assurances, he invested his lifetime savings with them; and that in March-2014 the accused failed to return the principal amount with interest being total of Rs. One crore, but then he was further inducted to invest Rs. 20 lacs more with the promise to return Rs. Two Crores on or before March-2019; and that MoU dated 26.07.2018 was executed, whereby accused undertook to pay the complainant a sum of Rs. 47,53,519/- and a cheque was also issued; and that later MoU dated 05.05.2019 was executed and it was promised that the complainant would be made a partner in the business and receipt of Rs. 50 lacs as principal amount was retained with the promise that it would be safe and secure with them and it would become Rs. 2 crores in 2019; and that on 18.02.2019 another Promissory Note was issued by accused No.2 Guneet Bhasin in favour of the complainant and his wife acknowledging liability to pay an amount of Rs. 2,47,53,000/- payable to the complainant and his wife on or before 30.06.2019.

3. It is further the case of the complainant that on 16.07.2019 the following nine cheques were issued:

S.No.	In favour of	Cheque No.	Amount	Date
1.	Amrit Pal Singh Bedi	666437	600000	16.07.19
2.	Amrit Pal Singh Bedi	666436	600000	16.07.19
3.	Amrit Pal Singh Bedi	103122	1000000	16.07.19
4.	Amrit Pal Singh Bedi	103121	1000000	16.07.19
5.	Amrit Pal Singh Bedi	935698	800000	16.07.19
6.	Amrit Pal Singh Bedi	666435	600000	16.07.19

7.	Rupinder Kaur Bedi	666434	600000	16.07.19
8.	Rupinder Kaur Bedi	666433	850000	16.07.19
9.	Rupinder Kaur Bedi	103120	1000000	16.07.19
	Total Amount		73,00,000/-	

4. To cut the long story short, the said cheques on presentation were dishonoured, and while cheque at Sr. No.1 was dishonoured for the reasons 'account closed', the bank returning memos in respect of other cheques from Sr. Nos. 2 to 9 came with the remarks 'kindly contact drawer/draw'. It is the case of the complainant that on receipt of such returning memos dated 17.07.2019, he served a legal notice dated 12.08.2019 upon the accused persons, which were duly served upon them and even replied through their Counsel vide reply dated 27.08.2019, but since no payment was made under the cheques, hence the complaint.

IMPUGNED ORDER

5. The said complaint was taken up for consideration by the Ld. MM on 04.10.2019 and following order was passed:-

" Fresh case received by way assignment. It be checked and registered.

Present: Mr. Aayush Sai Adv., for the complainant alongwith the complainant.

This is complaint filed for offence punishable under Section 138 N.I. Act. Complaint, affidavit of evidence and other annexed documents perused. The present complaint has been filed within the limitation period.

In matter of "A.C. Narayanan vs. State of Maharashtra & Anr" (2014) 11 Supreme Court Cases 790, Full Bench of Hon'ble Supreme Court of India has held as under :-

"29 From a conjoint reading of Sections 138, 142 and 145 of the NI Act as well as Section 200 of the Code, It is clear that it is open to the Magistrate to issue process on the basis of the contents of the complaint, documents in support thereof and the affidavit submitted by the complainant in support of the complaint. Once the complainant files an affidavit in support of the complaint before issuance of the process under Section 200 of the Code, it thereafter open to the Magistrate. if he thinks fit, to call upon the complainant to remain present and to examine him as to the facts contained in the affidavit submitted by the complainant in support of his complaint. However, it is a matter of discretion and the Magistrate is not bound to call upon the complainant to remain present before the court and to examine him upon oath for taking decision whether or not to issue process on the complaint under Section 138 of the NI Act. For the purpose of issuing process under Section 200 of the Code, it is open to the Magistrate to rely upon the verification in the form of affidavit filed by the complainant in support of the complaint under Section 138 of the NI Act.

It is only if and where the Magistrate, after considering the complaint under Section 138 of NI Act. documents produced in support thereof and the verification in the form of affidavit of the complainant, is of the view that examination of the complainant or his witness(s) is required, the Magistrate may call upon the complainant to remain present before the court and examine the complainant and/or his witness upon oath for taking a decision whether or not to issue process on the complaint under Section 138 of the NI Act."

The complaint, affidavit of evidence and documents considered in light of above cited judgment. In the opinion of this Court, there is no need to examine the complainant on oath as present complaint is duly supported by verification in the form of affidavit of the complainant. Thus, there are prima facie sufficient grounds for proceeding against accused nos. 1 to 3 and not accused no.4 for offence punishable under Section 138 N.I. Act.

Hence, issue summons against accused nos. 1 to 3 on filing of PF/RC returnable on 04.12.2019."

GROUND OF CHALLENGE

6. The grievance of the petitioner/revisionist Smt. Summy Bhasin in Criminal Revision No. 96/2020 is that she was neither the Director of the accused company nor she had signed the cheques in question; and that she denied that she ever participated in any of the meetings or negotiations with the complainant with regard to transaction in question nor she ever executed any single document with regard thereto. Likewise, petitioner/revisionist Sumit Bhasin in Criminal Revision No. 97/2020 has assailed the impugned summoning order dated 04.10.2019 on the ground that he did not sign the cheques in question nor he ever participated in the transactions in question and merely because he was Director of the company at the relevant time does not make him vicariously responsible for the acts and omissions on the part of the remaining Directors or the accused company itself.

7. Notices of the aforesaid Criminal Revision Petitions were issued to the respondent/complainant and he has filed a reply and it is but obvious that the respondent/complainant has supported the legality, correctness and propriety of the impugned summoning order.

ARGUMENTS ADVANCED AT BAR

8. Mr. Mandeep Singh Vинаik, Ld. Counsel for the petitioner/revisionist firstly urged that the complaint in so far as it pertains to cheques at Sr. Nos. 7,8 and 9,(as described in the aforesaid table) were issued in favour of the payee Rupinder Kaur Bedi and it was urged that Section 138 of the NI Act envisages that 'only the payee can file a complaint and no one else' and thus the complaint must be rejected as a whole. Secondly, he reiterated the ground the petitioner/revisionist Smt. Summy Bhasin had not played any role with regard to cheques in question and she was neither Director nor she was in any position of importance in decision making nor she signed any documents, and therefore, there are no grounds to held her vicariously responsible for the dishonour of the cheques. Much mileage was sought to be taken from the fact that in another complaint case filed by the

complainant Amrit Pal Singh Bedi bearing CC No. 6735/19, filed earlier to this complaint, similar allegations were levelled and the same Ld. MM did not take cognizance of the offence under Section 138 of the NI Act as against the accused No.4 Smt. Summy Bhasin and much was stressed by the learned Counsel for the petitioner/revisionist that the conduct of the complainant must be strictly scrutinized as he has maliciously introduced the averments which were never in his knowledge with regard to accused no. 4

9. It was then urged that from the Master Data of the Registrar of Companies, it is apparent that the petitioner/revisionist Smt. Summy Bhasin was not a Director, and therefore, summoning order against her is bad in law. in so far as criminal revision petition no. 97/2020 is concerned, it is vehemently urged that there are no allegations against the petitioner accused no. 3 as to what role he played in the issuance of cheque and there is no clear averment that he was in charge or responsible for the day to day affairs of the accused company. In his submissions, learned Counsel for the petitioner/revisionist has place reliance on a decision in Sudeep Jain v. ECE Industries Ltd., 201 (2013) Delhi Law Times 461 and National Small Industries Corporation Ltd. v. Harmeet Singh Paintal & Anr.m (2010) 3 SC 330. Lastly, referring to the decision in Sunil Bharti Mittal v. CBI, (2015) 4 SCC 609, it was urged that summoning order has far reaching consequences and the impugned order suffers from vice of non-application of mind.

10. Per contra Mr. Aayush Sai, Ld. Counsel for respondent in response to challenge to the locus standi of the complainant referred to the authority letter by Smt. Rupinder Kaur Bedi authorizing Amrit Pal Singh Bedi to file complaint case under Section 138 of the NI Act on her behalf, which is admittedly "Annexure C-11" with the complaint and it was urged that in quasi-criminal cases under Section 138 of the NI Act, no hyper-technical aspects be taken into consideration by this Court and only question is whether multiple cheques issued by the drawer bring out a common cause of action and whether the issues can be dealt with conveniently and decided together. As regards the remaining pleas raised by the learned opposite Counsel, it was vehemently urged that the complainant has specifically averred that the accused persons were known acquaintances, who belong to same family and the complainant was an outsider not knowing as to who were the Directors or otherwise, but he has clearly spelled out that negotiations had taken place with them. It was also urged that no reply was filed by the petitioner/revisionist Smt. Summy Bhasin to the legal notice dated 12.08.2019 served upon her and the Ld. Counsel referred to the Auditor's report of the accused company, and urged that it clearly suggests that Smt. Summy Bhasin was very much involved in nitty gritty of the business of accused company. In his submissions, Mr. Sai has referred to decision in the cases N. Rangachari v. BSNL, (2007) 5 SCC 108; A.R. Radha Krishna v. Dasari Deepthi & Ors., (2019) 15 SCC 550; Devender Raina v. State & Anr., Crl. M.C. NO. 2194 of 2205 decided on 12.10.2007; Monaben Ketanbahi Shah & Anr. v. State of Gujarat & Ors., (2004) 7 SCC 15; and Rajesh Agarwal v. State & Anr., 2010 SC Online Del 2501.

DECISION

11. I have given my thoughtful consideration to the submissions made by the learned Counsel for the parties. I have also perused the relevant record of this case.

12. While Section 138 of the NI Act provides for penal consequences in case of dishonour of a cheque for insufficiency of funds in the bank account of the drawer, we in the present revision petition are concerned mainly with Section 141 of the NI Act, which provides as under:-

"Offences by companies. - (1) If the person committing an offence under section 138 is a company, every person who, at the time the offence was committed, was in charge of, and was responsible to the company for the conduct of the business of the company, as well as the company, shall be deemed to be guilty of the offence and shall be liable to be proceeded against and punished accordingly:

Provided that nothing contained in this sub-section shall render any person liable to punishment if he proves that the offence was committed without his knowledge, or that he had exercised all due diligence to prevent the commission of such offence:

[Provided further that where a person is nominated as a Director of a company by virtue of his holding any office or employment in the Central Government or State Government or a financial corporation owned or controlled by the Central Government or the State Government, as the case may be, he shall not be liable for prosecution under this Chapter.] (2) Notwithstanding anything contained in sub-section (1), where any offence under this Act has been committed by a company and it is proved that the offence has been committed with the consent or connivance of, or is attributable to, any neglect on the part of, any director, manager, secretary or other officer of the company, such director, manager, secretary or other officer shall also be deemed to be guilty of that offence and shall be liable to be proceeded against and punished accordingly.

Explanation.-- For the purposes of this section,--

(a) "company" means any body corporate and includes a firm or other association of individuals; and

(b) "director", in relation to a firm, means a partner in the firm."

13. Avoiding the temptation to go into lengthy academic discussion, suffice to state that the Apex Court in the case of National Small Industries Corporation (supra), after an exhaustive analysis of the NI Act and the case law, laid down the following principles for application of Section 141 of the NI Act:-

"(i) The primary responsibility is on the complainant to make specific averments as are required under the law in the complaint so as to make the accused vicariously liable. For fastening the criminal liability, there is no presumption that every Director knows about the transaction.

(ii) Section 141 does not make all the Directors liable for the offence. The criminal liability can be fastened only on those who, at the time of the commission of the offence, were in charge of and were responsible for the conduct of the business of the company.

(iii) Vicarious liability can be inferred against a company registered or incorporated under the Companies Act, 1956 only if the requisite statements, which are required to be averred in the complaint/petition, are made so as to make accused therein vicariously liable for offence committed by company along with averments in the petition containing that accused were in-

charge of and responsible for the business of the company and by virtue of their position they are liable to be proceeded with.

(iv) Vicarious liability on the part of a person must be pleaded and proved and not inferred.

(v) If accused is Managing Director or Joint Managing Director then it is not necessary to make specific averment in the complaint and by virtue of their position they are liable to be proceeded with.

(vi) If accused is a Director or an Officer of a company who signed the cheques on behalf of the company then also it is not necessary to make specific averment in complaint.

(vii) The person sought to be made liable should be in-charge of and responsible for the conduct of the business of the company at the relevant time. This has to be averred as a fact as there is no deemed liability of a Director in such cases. "

14. Since the Id. Counsel for the petitioner/revisionist has also referred to the decision in the case of Sudeep Jain (supra), it would be expedient to refer to the observations made in paragraph (10) of the Judgment as well, which reads as under:-

"With a view to ensure that the Metropolitan Magistrates dealing with the complaint cases filed under Section 138 r/w Section 141 of the Negotiable Instruments Act have a clear and complete picture of the persons arrayed by the complainant so as to hold them vicariously liable for the commission of the offence by the accused company, I am inclined to direct that the Magistrates must seek copies of Form-32 from the complainant to prima facie satisfy the Court as to who were the directors of the accused company at the time of commission of the alleged offence and on the date of filing of the complaint case. In addition to the above, the Magistrates must also seek information as given in the following table which is to be annexed by the Complainant on a separate sheet accompanying the complaint:-

a. Name of the accused Company;

b. Particulars of the dishonoured cheque/cheques;

Person/Company in whose favour the cheque/cheques were issued

Drawer of the cheque/cheques

Date of issuance of cheque/cheques

Name of the drawer bank, its location

Name of the drawee bank, its location

Cheque No. /Nos.

Signatory of the cheque/cheques

c. Reasons due to which the cheque/cheques were dishonoured;

d. Name and Designation of the persons sought to be vicariously liable for the commission of the offence by the accused Company and their exact role as to how and in what manner they were responsible for the commission of the alleged offence;

e. Particulars of the legal notice and status of its service; f. Particulars of reply to the legal notice, if any.

15. In the light of the said proposition of law, reverting back to the instant case, firstly we must appreciate that no proposition of law or the ratio decidendi can be read divorced from the facts and circumstances or contextual background of the case in which such ratio is was propounded. In the case of Union of India v. Dhanwanti Devi, (1996) 6 SCC 44, at page 51, it was observed as under:

"9..... It is not everything said by a Judge while giving judgment that constitutes a precedent. The only thing in a Judge's decision binding a party is the principle upon which the case is decided and for this reason it is important to analyse a decision and isolate from it the ratio decidendi. According to the well-settled theory of precedents, every decision contains three basic postulates--(i) findings of material facts, direct and inferential. An inferential finding of facts is the inference which the Judge draws from the direct, or perceptible facts; (ii) statements of the principles of law applicable to the legal problems disclosed by the facts; and (iii) judgment based on the combined effect of the above. A decision is only an authority for what it actually decides. What is of the essence in a decision is its ratio and not every observation found therein nor what logically follows from the various observations made in the judgment. Every judgment must be read as applicable to the particular facts proved, or assumed to be proved, since the generality of the expressions, which may be found there is not intended to be exposition of the whole law, but governed and qualified by the particular facts of the case in which such expressions are to be found. It would, therefore, be not profitable to extract a sentence here and there from the judgment and to build upon it because the essence of the decision is its ratio and not every observation found therein. The enunciation of the reason or principle on which a question before a court has been decided is alone binding as a precedent. The concrete decision alone is binding between the parties to it, but it is the abstract ratio decidendi, ascertained on a consideration of the judgment in relation to the

subject-matter of the decision, which alone has the force of law and which, when it is clear what it was, is binding. It is only the principle laid down in the judgment that is binding law under Article 141 of the Constitution. A deliberate judicial decision arrived at after hearing an argument on a question which arises in the case or is put in issue may constitute a precedent, no matter for what reason, and the precedent by long recognition may mature into rule of stare decisis. It is the rule deductible from the application of law to the facts and circumstances of the case which constitutes its ratio decidendi.

10. Therefore, in order to understand and appreciate the binding force of a decision it is always necessary to see what were the facts in the case in which the decision was given and what was the point which had to be decided. No judgment can be read as if it is a statute. A word or a clause or a sentence in the judgment cannot be regarded as a full exposition of law. Law cannot afford to be static and therefore, Judges are to employ an intelligent technique in the use of precedents."

16. Keeping the aforesaid dictum at the back of our mind, it must be appreciated that the case of Sudeep Jain vs ECE (supra), was one where the petitioner/revisionist was working as a Company Secretary in the accused company, who was summoned to face trial under Section 138 of the NI Act. It is in such circumstances that while the Hon'ble High Court quashed the summoning order and provided by way of an obiter dicta that wherever a Director is sought to be prosecuted under section 138 of the NI Act, the Court may insist for Form No. 32 form the Registrar of Companies, and inter alia it was provided that name and designation of the person sought to be vicariously liable for the commission of the offence by the accused company, and his exact role and as to how and in what manner they were responsible for the commission of the alleged offence must be spelled out. It is out of place to point out that the case of National Small Industries Corporation Ltd. (supra), was one where summons were issued against a person in the capacity of a Director but it was shown that much prior to the date of issuance of cheques in question, the said person had retired and ceased to be a Director of the company and in such a situation it was held that no liability can be fastened upon a retired Director.

17. In the instant case, the respondent/complainant in paragraph (3) and subsequent paragraphs of his complaint under Section 138 of NI Act, has made specific averments that while respondent Nos.2 and 3 are the Directors of the accused No.1 company, accused No.4 has been handling finance and accounts of the accused No.1 company and responsible for its day to day operations along-with other accused persons. He has specifically averred that accused persons were personally known to them through common acquaintances and shared a cordial relationship, which was the premise, on the basis of which, the complainant invested heavily in the funds of the company. The plea by the Ld. Counsel for the petitioner/revisionist that petitioner/revisionist Sumit Bhasin and Smt. Summy Bhasin never participated in any negotiations with the complainant, can not be considered at this preliminary stage since such defence can only be considered during the trial. The prosecution under section 138 of the NI Act can be launched for vicarious liability against any person, who at the time of commission of offence, was in-charge and responsible for the conduct of the business of the accused company. Merely because the petitioner revisionist is not the director, or the Managing

director of the accused company, is not decisive for launching prosecution against her.

18. Reference in this connection can be made to N. Rangachari's case (supra), wherein it was held that when offender is company, every person, who at the time when offence was committed was in-charge of and was responsible to the accused company for the conduct of business of the company, shall be guilty of the offence along-with company. The plea of the petitioners Sumit Bhasin and Smt. Summy Bhasin the offences were committed without their knowledge cannot be considered at this state considering the fact that the complainant has specifically averred that negotiations had taken place with them and they were prima facie aware about the whole series of transaction. After all, it was not a small amount that was being invested and it was because of the parties being acquainted with each other that the whole transaction materialized. Reference can also be invited to a decision in the case A.R. Radha Krishna (supra), wherein their Lordships observed that "the issue as to what was role that was played by the Director in the Company or a person in-charge of its affairs is ultimately a 'question of fact' and no fixed formula can be fixed for the same". In the cited case it weighed in the mind of the Court that accused persons were from same family and running the affairs and operations of the accused company, which is exactly the position in the instant case.

19. Further, prima facie it appears that even in the reply by the accused persons dated 27.08.2019, there was no specific denial about the role attributed to the accused Sumit Bhasin and Smt. Summy Bhasin in the negotiations and transactions that were effected with the complainant. It is but manifest that the deal with the complainant was not a trivial or a routine case of marketing, sale or purchase of goods or services. At the cost of repetition, when such a huge investment was being sought from the complainant and applied for the running of the affairs of the company, it is not fathomable that the accused persons were unaware of the financial implications for themselves and for the accused company. In appreciating the whole facts and circumstances brought before this revisional Court we cannot lose sight of the laudable object of the NI Act that seeks to prevent bouncing of cheques and checking financial indiscipline by recourse to the statutory presumption of dishonesty exposing a person to criminal liability if payment is not made within the statutory period even after issuance the notice.

20. Before parting with this revision petitions, I may hasten to add that while the Ld. Counsel for the petitioner/revisionist made a vehement plea to scrutinize the conduct of the complainant, it is the conduct of the petitioner/revisionists that come under the cloud who appear to have turned dishonest and avoiding their culpability. Indeed in the other CC bearing No. 6735/18 the Ld. MM has chosen not to summon the accused No.4 Smt. Summy Bhasin, but that by itself cannot be a ground to grant any relief to her in the present case. There are no fetters on the judicial distinction of the Court to take a different view in another case based on the appreciation of the relevant material before it. The pleadings or for that matter allegations in the complaint like the present one should be interpreted in a manner that advances the cause of justice rather than allowing unscrupulous persons to take shelter behind legal technicalities. Though invariably the initial phase of a litigation under Section 138 of the NI Act depends on how well the pleadings or the allegations are laid down or articulated by the complaint, in the ultimate analysis it is the trial that alone can bring out the truth so as to arrive at a just and fair decision for the parties concerned. In other

words, there might be several aspects about the negotiations and the whole transactions between the varying parties that could only be brought during the trial by recording of evidence of the parties including recourse to section 145(2) of the NI Act, if adopted. Suffice to state that at this stage, the allegations that the accused/petitioner No. 3 and 4 were managing the affairs of the accused company also gets substantiated from the Auditor's report and the reply of the accused company dated 27.08.2019, which does lead to a strong inference that petitioner/revisionist Summy Bhasin had some role in the entire negotiations and the ultimate transactions and they must have been well aware about issuance of the cheques in question.

21. In the last, it is brought on the record by the Ld. Counsel for the respondent/complainant that prima facie an authority letter was given by Smt. Rupender Kaur Bedi to the complainant to file cases on her behalf. Merely because the complainant has committed a technical error in not pointing out this fact in the complaint, is by itself not so crucial so as to go the root of the matter and shot down his entire complaint. Although Section 142(1)(a) of the NI Act specifically provides that the Court can take cognizance on a written complaint by the payee or the holder in due course, there is nothing in the NI Act to curtail the legal right of a payee to appoint another person as agent or attorney to institute and prosecute the complaint u/s 138 of the NI Act, and at this stage of the case there is hardly any dispute that the complainant has personal knowledge of all the facts and circumstances surrounding the issuance of the cheques and he is otherwise the real beneficiary. In any case, the complaint can very well be prosecuted in respect of cheques detailed in the aforesaid table wherein the respondent/ complainant is the payee. Anyhow, this issue is left open to be decided during the trial.

FINAL DECISION

22. The sum and substance of the aforesaid discussion is that the petitioner/revisionists are prima facie vicariously responsible for issuance of cheques on behalf of the accused No.1 company. Accordingly, I do not find any illegality, infirmity or impropriety in the impugned summoning order passed by the ld Trial Court. Both the revision petitions are dismissed. Nothing contained herein shall tantamount to an expression of opinion on the merits of the complaint case.

23. A signed copy of this order be placed in file of both the revision petitions. A copy this order be sent to ld. trial Court record for information and records. A copy of this order be also sent to the ld. Counsel for the parties on their e-mail IDs for their information. File of both the revision petitions be consigned to Record Room.

DHARMESH

Digitally signed by DHARMESH SHARMA

SHARMA

Date: 2020.12.17 22:36:0530

Announced in the open Court
th

on 16 December, 2020

(DHARMESH SHARMA)

Principal District & Sessions Judge (West)
Tis Hazari Courts: Delhi

